

Nepal Interpretation of Laws Act, 1953

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Nepal Law Interpretation Act, 2010

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Amending Acts

1. Nepal Law Interpretation (Amendment) Act, 2011 2011.12.1 2012.3.6
 2. Some Nepal Laws (Amendment and Reorganization) Act, 2020 2020.11.16 2020.11.16
 3. Repeal and Amendment Act, 2022 2022.12.10
 4. Some Nepal Acts Amendment Act, 2053 2053.8.12 2053.8.12
- Certification and Publication Date
5. Some Nepal Laws Amendment Act, 2063 2063.6.28
 6. Act to Amend Some Nepal Acts for Gender Equality, 2063 2063.7.17
 7. Republic Strengthening and Some Nepal Laws Amendment Act, 2066 2066.10.7
 8. Act to Amend Some Nepal Acts for Gender Equality and Ending Gender-Based Violence, 2072 2072.6.14
 9. Some Nepal Acts Amendment Act, 2072 2072.11.13
 10. Some Nepal Acts Amendment Act, 2075 2075.11.19

Nepal Law Interpretation Act

Whereas it appears expedient to have authentic definitions of certain legal terms and phrases, His Majesty the King Maharajadhiraja, in exercise of His Royal Power and Royal Prerogative, has enacted and issued the following Act. 1. Short Title: This Act may be called "Nepal Law Interpretation Act, 2010". 2. Definitions: Unless the subject or context otherwise requires, in this Act or in other Nepal Acts?

(a) Act?The word "act" used in the context of a criminal or civil offence includes a series of acts, and words denoting acts done also denote omissions required by law.

(b) Chapter?This word shall mean any chapter of a Nepal Act designated as a "Chapter".

(c) Commencement?The word "commencement" used in the context of a Nepal Act shall mean the day on which the Act comes into force.

(d) Instrument?This word shall mean a subject written, expressed, or described on any material by one or more of those means that are or are intended to be used for the purpose of recording any subject by means of letters, numbers, and symbols.

(e) Act?This word means amended by Some Nepal Acts Amendment Act, 2075.an Act, a Code, a Sawal equivalent to an Act, and any matter written therein.

(f) Father?This word means, according to law, amended by Act to Amend Some Nepal Acts for Gender Equality and Ending Gender-Based Violence, 2072.a father who may adopt a son or a daughter and includes such adopter father.

(g) Fiscal Year?This word shall mean the year commencing from Shrawan Sankranti.

(h) Act done in Good Faith?An act done honestly, whether done or omitted negligently or otherwise, shall be deemed to have been done in good faith.

Amended by Some Nepal Laws (Amendment and Reorganization) Act, 2020.(i) "Nepal Government" means?

(a) in relation to any act done from the commencement of the Nepal Interim Government Act until Ashadh 15, 2016, when a Council of Ministers existed, His Majesty the King Maharajadhiraja acting on the advice of Ministers according to the Nepal Interim Government Act, and when no Council of Ministers existed, His Majesty the King Maharajadhiraja acting on the advice of members of the Council of Ministers or exercising Royal Prerogative; and

(b) in relation to any act done or to be done from Ashadh 16, 2016, to Marga Manta 2019, when a Council of Ministers existed, His Majesty the King Maharajadhiraja acting on the recommendation of the Council of Ministers according to the Constitution of the Kingdom of Nepal, or on the recommendation of a Minister authorized by the Prime Minister to act in relation to any question, and when no Council of Ministers existed, His Majesty the King Maharajadhiraja exercising powers according to other provisions of that Constitution; and

Amended by Some Nepal Laws Amendment Act, 2053.(c) in relation to any act done or to be done from Poush 1, 2019, to Kartik 22, 2047, His Majesty the King Maharajadhiraja acting on the advice of the Council of Ministers according to the Constitution of Nepal, or in an emergency exercising powers under Article 81A. of that Constitution, removed by Some Nepal Laws Amendment Act, 2063

Amended by Some Nepal Laws Amendment Act, 2063.(d) in relation to any act done or to be done from Kartik 23, 2047, to Jestha 3, 2063, His Majesty the King Maharajadhiraja and the Council of Ministers exercising the executive power of the Kingdom of Nepal according to the Constitution of the Kingdom of Nepal, 2047, and other laws, removed by Republic Strengthening and Some Nepal Laws Amendment Act, 2066

Amended by Republic Strengthening and Some Nepal Laws Amendment Act, 2066.(e) in relation to any act done or to be done from Jestha 4, 2063, to Poush 30, 2063, the Council of Ministers exercising the executive power of Nepal according to the Constitution of the Kingdom of Nepal, 2047, the Declaration of the House of Representatives, 2063, and other laws, removed by Some Nepal Acts Amendment Act, 2072

Amended by Some Nepal Acts Amendment Act, 2072.(f) in relation to any act done or to be done from Magh 1, 2063, to Ashwin 2, 2072, the Council of Ministers exercising the executive power of Nepal according to the Interim Constitution of Nepal, 2063, and other laws; and

Added by Some Nepal Acts Amendment Act, 2072.(g) in relation to any act done or to be done from Ashwin 3, 2072, the Council of Ministers exercising the executive power of Nepal according to the Constitution of Nepal and other laws.

Added by Some Nepal Acts Amendment Act, 2075.(i1) "Provincial Government" shall mean the Provincial Council of Ministers exercising the executive power of the Province according to Article 162 of the

Constitution of Nepal. Added by Some Nepal Acts Amendment Act, 2075.(i2) "Local Executive" shall mean the Village Executive or Municipal Executive exercising the executive power of the local level according to Article 214 of the Constitution of Nepal. Amended by Some Nepal Laws (Amendment and Reorganization) Act, 2020.(j) Words used in relation to His Majesty the King Maharajadhiraja mean:?

(a) in relation to acts done before Ashadh 16, 2016:?

- (1) the Royal Council formed under the Royal Council Act, 2010, and the Royal Council Act, 2011; and
- (2) His Majesty the Crown Prince acting by exercising the authority and Royal Prerogative granted by His Majesty the King Maharajadhiraja on Falgun 7, 2011; and
- (3) the Regent appointed under the Royal Authority Delegation Act, 2012; and

(b) in relation to acts done or to be done from Ashadh 16, 2016, to Marga Manta 2019, any person exercising or authorized to exercise the powers of His Majesty the King Maharajadhiraja according to the Constitution of the Kingdom of Nepal; and

Amended by Some Nepal Laws Amendment Act, 2053.(c) in relation to acts done or to be done from Poush 1, 2019, to Kartik 22, 2047, the State Assistant or State Assistant Council authorized under the Constitution of Nepal, or any person or persons exercising powers under Article 22A. of that Constitution; and

Amended by Some Nepal Laws Amendment Act, 2063.(d) in relation to acts done or to be done from Kartik 23, 2047, to amended by Republic Strengthening and Some Nepal Laws Amendment Act, 2066.Jestha 3, 2063, the Regent or Regent Council exercising powers under Sub-article (2) of Article 32 of the Constitution of the Kingdom of Nepal, 2047, and the State Assistant or State Assistant Council authorized under Article 34.

(k) Immovable Property?means land, profits arising therefrom, and things attached to the earth.

Amended by Some Nepal Laws (Amendment and Reorganization) Act, 2020.(l) Nepal Act?This word shall mean any Act enacted after Falgun 7, 2007, amended by Republic Strengthening and Some Nepal Laws Amendment Act, 2066.and any Act made by the Federation, Province or Local Level in accordance with the Nepal Interim Government Act, 2007, or the Constitution of the Kingdom of Nepal, or the Constitution of Nepal, amended by Republic Strengthening and Some Nepal Laws Amendment Act, 2066.or the Constitution of the Kingdom of Nepal, 2047, amended by Republic Strengthening and Some Nepal Laws Amendment Act, 2066.or the Declaration of the House of Representatives, 2063, or the Interim Constitution of Nepal, 2063, amended by Some Nepal Acts Amendment Act, 2075.or the Constitution of Nepal.

(m) Nepal Law?This word shall mean a Nepal Act or any Act, Sawal, Rule, amended by Some Nepal Acts Amendment Act, 2075.Order, Bye-law, or Directive or Procedure made under an Act that is enforceable as law in any part of Nepal.

(n) Month?This word shall mean a month calculated according to the Nepali calendar based on Sankranti.

(o) Movable Property?This word shall mean every kind of property other than immovable property.

(p) Oath?This word includes an affirmation or declaration made by a person who is permitted by an Act to make an affirmation or declaration instead of taking an oath.

(q) Offence?This word shall mean an act which, if done or omitted under the prevailing law, is punishable.

(r) Part?This word shall mean the part of a Nepal Act written as "Part" in that Act.

- (s) Person?This word includes any company, association, or body of persons, whether incorporated or not.
- (t) Prescribed?This word, when written as "prescribed" in an Act, shall mean prescribed according to rules made under that Act.
- (u) Rule?This word shall mean a rule made in exercise of authority given by any Act, and also includes a bye-law made equivalent to a rule under any Act.
- (v) Schedule?This word, when written as "Schedule" in an Act, shall mean the Schedule of that Act.
- (w) Section?This word, when written as "Section" in an Act, shall mean the Section of that Act.
- (x) Thumb Impression?This word includes the thumb impression of a person who cannot sign with his signature, and the grammatical variations thereof, as well as similar words.
- (y) Son?This word includes an adopted son where an Act permits adoption.

Added by Act to Amend Some Nepal Acts for Gender Equality, 2063.(y1) "Daughter" ?This word includes an adopted daughter where an Act permits adoption.

(z) Sub-section?This word, when written as "Sub-section" in a Section, shall mean the Sub-section of that Section.

(aa) Will?This word means a deed of gift and any instrument voluntarily written to give property after death.

(bb) Amended by Some Nepal Acts Amendment Act, 2075.Written?This word shall also include words printed, lithographed, photographed, or written in any other visible or legible form.

(cc) Year?This word shall mean the year commencing from Baisakh Sankranti according to the Nepali calendar. 3. Regarding Application of Acts: Unless a Nepal Act specifies a date from which it shall come into force, it shall come into force as follows:?

(a) In the case of an Act made under the Nepal Interim Government Act, 2007, from the day it received approval from His Majesty the King Maharajadhiraja.

(b) Added by Some Nepal Laws Amendment Act, 2063.For the period up to Jestha 3, 2063, " from the day the Act was certified by His Majesty the King Maharajadhiraja after being enacted."

Restrictive phrase removed by Some Nepal Laws Amendment Act, 2063. Amended by Republic Strengthening and Some Nepal Laws Amendment Act, 2066. (c) In the case of an Act made from Jestha 4, 2063, to Poush 30, 2063, from the day the Speaker certified the matter passed by the House of Representatives. Added by Republic Strengthening and Some Nepal Laws Amendment Act, 2066. (d) In the case of an Act made from Magh 1, 2063, to Shrawan 7, 2065, from the day the Speaker certified the matter passed by the Legislature-Parliament, removed by Some Nepal Acts Amendment Act, 2072

Amended by Some Nepal Acts Amendment Act, 2072. (e) In the case of an Act made from Shrawan 8, 2065, to Ashwin 2, 2072, from the day it was passed by the Constituent Assembly and certified by the President under Sub-article (1) of Article 83 of the Interim Constitution of Nepal, 2063; and

Added by Some Nepal Acts Amendment Act, 2072. (f) In the case of an Act made from Ashwin 3, 2072, from the day it was passed by the amended by Some Nepal Acts Amendment Act, 2075.Legislature-Parliament under Article 296(1) of the Constitution of Nepal, or by the Federal Parliament under Article 83 of the Constitution of Nepal, and certified by the President. Provided that no punishment or penalty shall be

imposed under such Act for any punishable act done or omitted before the publication of that Act in the Nepal Gazette. 4.

Effect of Repeal: If a Nepal Act repeals any Act made previously or to be made subsequently, then, unless a different intention appears, the repealed Act: (a) Does not revive anything not in force or existing at the time of repeal. (b) Does not affect any matter already in operation or any act done or punishment already incurred under it before its repeal. (c) Shall not affect any right, privilege, duty, or liability acquired, accrued, or incurred under the repealed Act. (d) Shall not affect any penalty, forfeiture, or punishment incurred in respect of any offence committed against the repealed Act. (e) Shall not affect any investigation, legal proceeding, or remedy in respect of any such right, privilege, duty, liability, penalty, forfeiture, or punishment; any such investigation, legal proceeding, or remedy may be instituted, continued, or enforced, and any such penalty, forfeiture, or punishment may be imposed as if the repealing Act had not been passed. 5. Repeal of an Amending Act of a Principal Act or Bye-law: If any Nepal Act or Bye-law repeals an Act that expressly amends the principal matter of a Nepal Act by omission, addition, or substitution, then, unless a different intention appears, such repeal shall not affect the continuance of the amendment made by the repealed Act that was in force at the time of repeal. 6. Regarding Re-enactment of Repealed Acts: When the whole or part of an already repealed Act is to be re-enacted, the purpose thereof must be clearly stated in the Nepal Act. 7. Interpretation of Reference to Repealed Acts: If this or any other Nepal Act repeats a matter of a previous Act by re-enacting it with or without transformation, then, unless a different intention appears, any reference in any other Act or document to the repealed matter shall be construed as a reference to the matter re-enacted in that manner. 8. Commencement and End of Time: In any Nepal Act, if the first part or day is to be excluded from a period or days, the word "from" shall be used; and if the last part or day is to be included in a period or days, the word "to" shall be used. 9.

Computation of Time: If in any Nepal Act a date or period is prescribed or permitted for doing any act or proceeding in any office or court, and if that date or the last day of such period is a holiday, amended by Some Nepal Laws Amendment Act, 2063. then such act or proceeding, if done on the first day after the holiday when the office or court reopens, shall be deemed to have been done within the period. 10. Measurement of Distance: For the purposes of any Nepal Act, unless a different intention appears, distance shall be measured in a straight line on a horizontal plane. 11. Regarding Levy of Duty at Prescribed Rate in Act: If under any existing or future Act any duty, excise, or similar tax is leviable on any article according to weight, measure, or value, such duty shall be levied at that same rate whether the article is more or less. 12. Gender and Number: Unless the subject or context otherwise requires, in all Nepal Acts: (1) Words importing the masculine gender shall also include the feminine gender. (2) Words in the singular number shall include the plural, and words in the plural number shall include the singular. 13. Regarding Binding of Nepal Government removed by Some Nepal Laws Amendment Act, 2063. by Act: No Nepal Act shall be deemed to (a) removed by Some Nepal Laws Amendment Act, 2063. (b) impose any tax, liability, or burden on the Nepal Government unless the intention to do so is clearly expressed in the Act. 14. Regarding Exercise of Given Power from Time to Time: If any Nepal Act confers an authority, such authority may be exercised as and when required, unless a different intention appears. Added by Some Nepal Acts Amendment Act, 2075. 14A. Deemed Performance of Act by Nepal Government: Where under the prevailing law, among matters stated to be performed by the Nepal Government, the following matters are performed by the Nepal Government from the Council of Ministers, and other matters are performed by the concerned Minister or by an officer of the special class published in the Nepal Gazette as delegated by the Minister in accordance with the Rules of Business of the Nepal Government or as delegated by the Nepal Government, such act shall be deemed to have been performed by the Nepal Government: (a) Matters stated under the prevailing law to

be performed by the Nepal Government from the Council of Ministers; (b) Matters required to be submitted to the Nepal Government, Council of Ministers, according to the Rules of Business of the Nepal Government; (c) Matters stated under the prevailing law to be appealable to the Nepal Government. 15.

Regarding Inclusion of Power of Appointment by Designation in the Power of Appointment: If any Nepal Act confers on any person the power to appoint to any office or post, then, unless any contrary matter is expressly stated, such appointment after the commencement of this Act may be made by the name of the person or by the designation of the office. 16. Regarding Inclusion of Power of Suspension and Dismissal in the Power of Appointment: If any Nepal Act confers on any person the power to appoint, then, unless a different intention appears, the authority having power to appoint at that time may suspend or dismiss any person appointed by himself or by any other person having such authority. Added by Some Nepal Laws Amendment Act, 2063.16A. Power to Impose Lesser Punishment: If any Nepal Act confers on any authority the power to take action and impose punishment, then, unless a different intention appears or otherwise provided, such authority shall have the power to take action and impose punishment for matters carrying a lesser punishment. 17. Substitution of Employees: If any Nepal Act requires notice to be given to persons working in any office or to certain personnel, it is sufficient to specify the designation of the officer working or generally doing such work. 18. Successors: In any Nepal Act, when expressing a legal relationship with the successor of an employee or with the successor of a corporation having amended by Repeal and Amendment Act, 2022.continuous succession, it is sufficient to show that legal relationship with such employee or corporation. 19. Subordinate Officers of the Principal Officer: To state that the law relating to the principal or superior officer of an office shall apply to deputies or subordinate officers lawfully acting in their place, it is sufficient in any Nepal Act to prescribe the duties of the principal or superior officer. 20. Interpretation of Orders etc. Issued Under an Act: If any Nepal Act confers authority to issue notices, orders, schemes, rules, forms, or bye-laws, then, unless the subject or context otherwise requires, after this Act comes into force, the meaning of such notices, orders, schemes, rules, forms, or bye-laws shall be as determined under the Act or Bye-law conferring such authority. 21. Regarding Inclusion of Power to Amend, Alter, or Repeal in the Authority to Make Orders, Rules, or Bye-laws: If any Nepal Act confers authority to issue notices, orders, rules, or bye-laws, then such authority includes the power, under similar circumstances and in the same manner, to add to, amend, alter, or repeal such issued notices, orders, rules, or bye-laws. 22.

Regarding Making of Rules or Bye-laws and Issuance of Orders Between Enactment and Commencement of an Act: Amended by Some Nepal Laws Amendment Act, 2063.If an Act is enacted but not to come into force immediately, and if under that Act it is necessary to make rules or bye-laws, issue orders to bring the Act into operation, establish any office or court, amended by Some Nepal Laws Amendment Act, 2063.appoint judges or adjudicating officers or officials, or do anything regarding persons, time, place, procedure, or fee according to the Act, then such authority may be exercised after the Act or rule is amended by Some Nepal Laws Amendment Act, 2063.enacted, notwithstanding anything; but orders, rules, or bye-laws so made or issued shall not come into effect until the Act comes into force. 23. Matters Applicable When Rules or Bye-laws Require Prior Publication: If any Nepal Act provides that rules or bye-laws are to be made after prior publication, then the following matters shall apply: (1) The authority empowered to make the rules or bye-laws shall, before making them, publish a draft of the proposed rules or bye-laws for the information of persons likely to be affected thereby. (2) The publication shall be made in such manner as the authority deems sufficient, or, if required by the condition of prior publication, in the manner prescribed by the Nepal Government. (3) Along with the draft, a notice specifying the date on or after which the matter will be considered shall be published. (4) The authority empowered to make the rules or bye-laws, and if such rules

or bye-laws require the approval, permission, or consent of another authority, that other authority shall also consider any suggestion or objection received from any person before the specified date. (5) After the order making the rules or bye-laws with prior publication is published in the Nepal Gazette, such published rules or bye-laws shall be conclusive evidence that they have been duly made. 24. Regarding Continuance of Orders etc. Issued Under Repealed and Re-enacted Acts: If after this Act comes into force any Nepal Act is repealed or re-enacted with or without modification, then, unless any contrary matter is expressly stated, any appointment, notice, order, scheme, rule, form, or bye-law made under the repealed Act shall, so far as they are not inconsistent with the re-enacted Act, continue in force, and shall be deemed to have been made or issued under the re-enacted Act unless and until superseded by any appointment, notice, order, scheme, rule, form, or bye-law made under the re-enacted Act. 25.

Matters Regarding Offences Punishable Under Two or More Acts: If any act or omission constitutes an offence under two or more Acts, the offender shall be punished under any one of those Acts, but shall not be liable to be punished twice for the same offence. 26. Meaning of Service by Post: If any Nepal Act requires service of any document by post, or authorizes the doing thereof, and the words "serve", "give", "send", or any other similar words appear, then, unless a different intention appears, "serve" means to deliver a properly addressed, sealed, and registered letter with prepaid postage to the post office; and if done so, the letter containing the document shall be deemed to have been received at the time when it would arrive in the ordinary course of post. 27. Citation of Act: (1) If any Nepal Act and any rule, bye-law, document, or instrument made under or in relation to that Act gives a name or short title to any Act, such Act may be cited by that name or by its number and year; and any matter written in an Act may be cited by the Section or Sub-section of the Act containing that matter. (2) In this Act and any Nepal Act, unless a different intention appears, any description or citation of any part shall be deemed to include the beginning and the end of the words, Section, or other part described or cited. Added by Republic Strengthening and Some Nepal Laws Amendment Act, 2066. 27A. Prevailing Laws to Remain in Force Until Amended or Repealed: Laws enacted before Jestha 16, 2065, and made under the then prevailing Constitution and in force in the State of Nepal up to that day shall remain in force until amended or repealed. 28. Interpretation of Earlier Acts: (1) In any Nepal law made before Falgun 7, 2007, words denoting Shree 3 Maharaj, Mukhtiyar, or Talukwala, in relation to any act or proceeding done or to be done after Falgun 7, 2007, shall be deemed to refer to the Nepal Government. Added by Some Nepal Laws Amendment Act, 2063. (1a) In relation to laws made from Falgun 7, 2007, to Jestha 3, 2063, treaties or agreements where Nepal is a party, or other acts done, words denoting "His Majesty's Government" shall, after Jestha 4, 2063, refer to the Nepal Government. (2) Unless the subject or context otherwise requires, Sections 9, 10, 11, 12, 13, 14, 15, 16, 17, 18, 19, 20, and 21 of this Act shall apply to the interpretation of Nepal laws made before Falgun 7, 2007.